

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Annette Castillo	Team: Squad #12	CCRB Case #: 202308838	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 09/04/2023 7:12 PM	Location of Incident: Bedford Avenue and Flushing Avenue in Brooklyn	18 Mo. SOL 3/4/2025	Precinct: 79		
Date/Time CV Reported Tue, 09/19/2023 1:48 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/19/2023 1:48 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Christopher Mcdonald	00320	951980	079 PCT
2. PO Isaac Quarshie	21243	968075	079 PCT
3. SGT Jose Jimenez	16257	966645	TD 30
4. PO Demitrious Peterson	20688	971609	079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Manuel Formoso	01331	970523	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Christopher Mcdonald	Abuse: Sergeant Christopher Mcdonald stopped the vehicle in which § 87(2)(b) was an occupant.	
B . PO Demitrious Peterson	Abuse: Police Officer Demitrious Peterson stopped § 87(2)(b)	
C . SGT Jose Jimenez	Abuse: Police Officer Jose Jimenez stopped § 87(2)(b)	
D . PO Demitrious Peterson	Abuse: Police Officer Demitrious Peterson threatened to issue summons to § 87(2)(b)	
E . PO Demitrious Peterson	Abuse: Police Officer Demitrious Peterson questioned § 87(2)(b)	
F . SGT Christopher Mcdonald	Abuse: Sergeant Christopher Mcdonald questioned § 87(2)(b)	
G . SGT Christopher Mcdonald	Abuse: Sergeant Christopher Mcdonald failed to provide § 87(2)(b) with a business card.	
H . PO Isaac Quarshie	Abuse: Police Officer Isaac Quarshie failed to provide § 87(2)(b) with a business card.	
I . PO Demitrious Peterson	Abuse: Police Officer Demitrious Peterson failed to provide § 87(2)(b) with a business card.	
J . SGT Jose Jimenez	Abuse: Police Officer Jose Jimenez failed to provide § 87(2)(b) with a business card.	
K . PO Demitrious Peterson	Abuse: Police Officer Demitrious Peterson improperly used his body-worn camera.	

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via telephone on September 19, 2023.

On September 4, 2023, at approximately 7:12 PM, Sgt. Christopher McDonald of the 79th Precinct stopped § 87(2)(b) vehicle at the intersection of Bedford Avenue and Flushing Avenue in Brooklyn (**Allegation A: Abuse of Authority**, § 87(2)(g) PO Demitrious Peterson of the 79th Precinct stopped § 87(2)(b) a passenger in § 87(2)(b) vehicle (**Allegation B: Abuse of Authority**, § 87(2)(g) PO Jose Jimenez of the 79th Precinct (now a sergeant assigned to Transit District 30, but referred to as PO Jimenez for the remainder of this report) stopped § 87(2)(b) another passenger in § 87(2)(b) vehicle (**Allegation C: Abuse of Authority**, § 87(2)(g) PO Peterson threatened to issue a summons to § 87(2)(b) (**Allegation D: Abuse of Authority**, § 87(2)(g) § 87(2)(b) PO Peterson allegedly questioned § 87(2)(b) (**Allegation E: Abuse of Authority**, § 87(2)(g) Sgt. McDonald allegedly questioned § 87(2)(b) with regard to her brother, § 87(2)(b) (**Allegation F: Abuse of Authority**, § 87(2)(g) Sgt. McDonald and PO Isaac Quarshie of the 79th Precinct failed to provide § 87(2)(b) with business cards (**Allegations G and H: Abuse of Authority**, § 87(2)(g) PO Peterson failed to provide a business card to § 87(2)(b) (**Allegation I: Abuse of Authority**, § 87(2)(g) PO Jimenez failed to provide a business card to § 87(2)(b) (**Allegation J: Abuse of Authority**, § 87(2)(g) PO Peterson improperly used his body-worn camera (BWC) during this incident (**Allegation K: Abuse of Authority**, § 87(2)(g) This incident did not result in an arrest or summons.

The investigation obtained six BWC videos associated with this incident (Board Review 01), summarized in IA #76 of the digital case file (Board Review 02).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Christopher McDonald stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) provided a statement to the CCRB on October 6, 2023 (Board Review 03). She testified that she was driving along Bedford Avenue approaching the intersection of Flushing Avenue. § 87(2)(b) brothers, § 87(2)(b) and § 87(2)(b) were in her vehicle, along with a fourth individual whose name § 87(2)(b) declined to provide. (The investigation identified this individual as § 87(2)(b) § 87(2)(b) was in the driver's seat, § 87(2)(b) was in the front passenger seat, § 87(2)(b) was in the rear passenger seat, and § 87(2)(b) was in the rear driver-side seat. § 87(2)(b) vehicle did not bear any license plate because the plates had recently been stolen. At least two police vehicles stopped § 87(2)(b) vehicle. Two officers, identified by the investigation as Sgt. McDonald and PO Quarshie, approached § 87(2)(b) vehicle, and both officers requested her license and registration. § 87(2)(b) complied and provided the requested documents along with the title for her vehicle. Sgt. McDonald informed § 87(2)(b) that she was pulled over for driving without license plates. § 87(2)(b) informed the officers that her license plates had been stolen.

Sgt. McDonald provided a statement to the CCRB on February 26, 2024 (Board Review 04). Sgt. McDonald testified that he observed § 87(2)(b) vehicle travelling along Bedford Avenue without visible license plates. Sgt. McDonald instructed PO Quarshie, who was the

operator of his vehicle, to stop § 87(2)(b) vehicle. Upon approaching the vehicle, Sgt. McDonald requested § 87(2)(b) license, registration, and insurance. PO Quarshie then approached the driver's window and continued to engage with § 87(2)(b)

In Sgt. McDonald's BWC video (Board Review 05), at 1 minute, Sgt. McDonald exits his vehicle, activates his BWC, and approaches § 87(2)(b) tan-colored Chevrolet. § 87(2)(b) vehicle does not have a front license plate. At 1 minute 4 seconds, Sgt. McDonald approaches the passenger side of § 87(2)(b) vehicle and requests her license, registration, and insurance. At 1 minute 20 seconds, § 87(2)(b) asks, "What's the reason of the pull?" Sgt. McDonald informs her that she does not have a rear license plate. At 1 minute 24 seconds, § 87(2)(b) states that someone stole her plates and that she was on her way to file a report.

In PO Jimenez's BWC video (Board Review 06), at 1 minute 2 seconds, he exits the driver seat of his vehicle and approaches § 87(2)(b) vehicle. § 87(2)(b) vehicle does not have a rear license plate. After § 87(2)(b) explains that her license plates were stolen, PO Quarshie, who is standing near her window, requests her license and registration at 1 minute 23 seconds.

According to New York Vehicle and Traffic Law Section 402-1(a) (Board Review 07), no person shall operate, drive, or park a motor vehicle on the public highways of this state unless such vehicle shall have a distinctive number assigned to it by the commissioner and a set of number plates issued by the commissioner with a number and other identification matter if any, corresponding to that of the certificate of registration conspicuously displayed, one on the front and one on the rear of such vehicle.

It is undisputed that Sgt. McDonald stopped § 87(2)(b) vehicle. § 87(2)(b) acknowledged that her vehicle did not bear any license plate. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Demitrious Peterson stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Jose Jimenez stopped § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Demitrious Peterson threatened to issue summons to § 87(2)(b)

§ 87(2)(b) stated (Board Review 03) that as Sgt. McDonald was speaking to her, an officer identified by the investigation as PO Peterson "harassed" § 87(2)(b) by requesting his name and address so that he could issue a summons for not wearing a seatbelt. Everyone in § 87(2)(b) vehicle was wearing a seatbelt, including § 87(2)(b) PO Peterson stated that everyone was going to receive a summons. § 87(2)(b) advised § 87(2)(b) not to provide his name because he was a minor. § 87(2)(b) ultimately provided his name and address to PO Peterson.

Although not alleged by § 87(2)(b) BWC videos show that PO Jimenez requested § 87(2)(b) identification. Additionally, BWC video shows that PO Peterson only ever stated that he could issue a summons to § 87(2)(b)

In PO Formoso's BWC video (Board Review 08), at 1 minute 24 seconds, PO Formoso approaches

PO Peterson, who is standing near the rear passenger-side window. At 1 minute 42 seconds, PO Peterson requests § 87(2)(b) name. § 87(2)(b) response is not audible. PO Peterson asks, “You don’t want to give me your name?” PO Peterson then requests § 87(2)(b) age. At 1 minute 48 seconds, PO Peterson [out of frame] asks, “You’re fifteen?” At 2 minutes 11 seconds, PO Peterson says to § 87(2)(b) “It’s a summons not to have your seatbelt on in the back seat of a vehicle.” § 87(2)(b) then spells his name to PO Peterson, who repeats each letter. At 3 minutes 18 seconds, PO Peterson [out of frame to PO Formoso’s left] tells § 87(2)(b) that § 87(2)(b) does not have his seatbelt on in the back seat. § 87(2)(b) asks, “So he has to get a summons?” PO Peterson responds affirmatively and requests § 87(2)(b) address.

In PO Jimenez’s BWC video (Board Review 06), at 1 minute 30 seconds, while standing near the rear driver-side window, PO Jimenez shines his flashlight at § 87(2)(b). Neither § 87(2)(b) nor § 87(2)(b) seated in the rear on the passenger side, wears a seatbelt. At 1 minute 40 seconds, PO Jimenez requests § 87(2)(b) identification. § 87(2)(b) states that he does not have it with him. At 1 minute 42 seconds, PO Jimenez tells § 87(2)(b) that he has to have a seatbelt on in the rear seat. At 2 minutes 10 seconds, PO Jimenez requests § 87(2)(b) first name, and § 87(2)(b) verbally provides his full name along with his date of birth. PO Jimenez runs § 87(2)(b) information on his department phone. At 3 minutes 12 seconds, PO Jimenez asks § 87(2)(b) if he lives in New York, and § 87(2)(b) replies that he lives in § 87(2)(b).

PO Peterson provided a statement to the CCRB on February 26, 2024 (Board Review 09). PO Peterson testified that he approached the rear passenger side of the vehicle and observed that neither rear passenger was wearing a seatbelt. PO Peterson requested § 87(2)(b) identification due to this observed VTL violation. § 87(2)(b) verbally provided his name to PO Peterson. PO Peterson ran his name through the department’s databases, as is routine during a stop. It was initially his intention to issue § 87(2)(b) a summons, but he ultimately used his discretion and did not do so.

PO Jimenez provided a statement to the CCRB on February 23, 2024 (Board Review 10). PO Jimenez testified that he approached the rear driver side of the vehicle and observed that § 87(2)(b) was not wearing a seatbelt. PO Jimenez requested § 87(2)(b) information due to this VTL violation, though he did not recall if it was his intention at that point to issue § 87(2)(b) a summons. § 87(2)(b) was eligible for a summons and was not free to leave. PO Jimenez ultimately exercised his discretion and did not issue § 87(2)(b) a summons.

Per NYS Vehicle and Traffic Law Section 1229-c (Board Review 11), all rear seat passengers must be restrained by a safety belt.

Although § 87(2)(b) testified that all of her passengers were wearing seatbelts, BWC video clarifies that § 87(2)(b) and § 87(2)(b) were not wearing seatbelts. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) alleged that PO Peterson stated that everyone would be issued a summons. BWC video clarifies that PO Peterson only stated that the passenger whom he was dealing with, § 87(2)(b) might receive a summons. § 87(2)(g)

§ 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Demitrious Peterson questioned § 87(2)(b)**Allegation (F) Abuse of Authority: Sergeant Christopher McDonald questioned § 87(2)(b)**

§ 87(2)(b) stated (Board Review 03) that PO Peterson asked § 87(2)(b) “What’s that you’re sitting on? What’s under you? What’s under you?” § 87(2)(b) had not been sitting on anything. § 87(2)(b) moved forward in his seat to reveal his seat and asked PO Peterson what he was referring to. PO Peterson did not ask any further questions about what § 87(2)(b) was sitting on. PO Peterson then asked § 87(2)(b) why his socks looked “like that,” and asked him what he was doing. PO Peterson asked § 87(2)(b) if he was “climbing a fence or something.” § 87(2)(b) socks were slightly dirty with a visible stain on one sock. § 87(2)(b) believed that PO Peterson was accusing § 87(2)(b) of having committed some crime because his socks were dirty. PO Peterson did not ask § 87(2)(b) any further questions. Sgt. McDonald then questioned § 87(2)(b) about her siblings, § 87(2)(b) and § 87(2)(b) who were not present. Sgt. McDonald asked § 87(2)(b) where her siblings were, and she responded that she did not know. Sgt. McDonald stated that he knew what they had done. Sgt. McDonald stated that § 87(2)(b) and § 87(2)(b) had been “chased” out of “site four and five in Coney Island.” Sgt. McDonald stated that someone was killed at that location and so § 87(2)(b) and § 87(2)(b) could not return. Sgt. McDonald asked § 87(2)(b) if she remembered the boy who had been killed in that building. § 87(2)(b) responded that she did not know anything about those occurrences and then asked Sgt. McDonald about the purpose of the vehicle stop. Sgt. McDonald did not question § 87(2)(b) further.

In PO Peterson’s BWC video (Board Review 12), at 1 minute 43 seconds, PO Peterson asks § 87(2)(b) [partially in frame in the rear passenger seat], “What is that you’re sitting on?” § 87(2)(b) responds that he is not sitting on anything as he moves his right leg aside. At 3 minutes 13 seconds, PO Peterson asks § 87(2)(b) “You was outside all day?” § 87(2)(b) response is not audible, but PO Peterson asks, “No?” At 3 minutes 17 seconds, PO Peterson asks, “What happened to your sock? It’s a little dirty.” § 87(2)(b) asks, “Huh?” PO Peterson informs him that his socks are a little dirty. At 3 minutes 22 seconds, § 87(2)(b) states that he was not outside all day.

PO Peterson testified (Board Review 09) that he did not recall if he asked § 87(2)(b) any questions beyond requesting his identification. PO Peterson reviewed the above-detailed portion of his BWC video prior to his CCRB interview. After referencing this portion of BWC video again during his interview, PO Peterson stated that he was having a general conversation with § 87(2)(b) when he asked what § 87(2)(b) was sitting on. PO Peterson did not recall what he believed § 87(2)(b) may have been sitting on. PO Peterson acknowledged asking § 87(2)(b) about his socks, which appeared dirty. PO Peterson testified that he was only engaging in general conversation with § 87(2)(b). PO Peterson’s questions to § 87(2)(b) were in no way accusatory. PO Peterson did not ask § 87(2)(b) if he had climbed any fence. In Sgt. McDonald’s BWC video (Board Review 05), at 3 minutes 53 seconds, Sgt. McDonald asks, “Yo, § 87(2)(b) § 87(2)(b) tells Sgt. McDonald that that is not § 87(2)(b). At 4 minutes 22 seconds, Sgt. McDonald asks § 87(2)(b) if her brothers had been “kicked out” of “sites four and five.” § 87(2)(b) looks at Sgt. McDonald and appears confused. Sgt. McDonald

then states that her brothers had been “kicked out” of sites four and five. § 87(2)(b) asks who her “brothers” are, and Sgt. McDonald responds, “§ 87(2)(b) At 4 minutes 30 seconds, § 87(2)(b) states that she does not know what Sgt. McDonald is talking about. Sgt. McDonald replies that § 87(2)(b) knows what he is talking about. § 87(2)(b) questions the intent of the vehicle stop, given that Sgt. McDonald is asking about her brothers. At 7 minutes 42 seconds, Sgt. McDonald asks § 87(2)(b) if she resided at § 87(2)(b) when someone by the name of § 87(2)(b) was killed in a hallway. Sgt. McDonald then asks her how long ago § 87(2)(b) resided at § 87(2)(b). § 87(2)(b) asks Sgt. McDonald why he is asking her that and says that she knows nothing about anything to which Sgt. McDonald is referring. At 8 minutes 10 seconds, § 87(2)(b) states that the officers pulled her over for something else and that she does not know anything about whatever events Sgt. McDonald is referring to. At 9 minutes 4 seconds, Sgt. McDonald tells § 87(2)(b) that he used to work at the 60th Precinct and that is why he is asking her about these occurrences.

Sgt. McDonald testified (Board Review 04) that he recognized § 87(2)(b) name and § 87(2)(b) name from his previous position as a Field Intelligence Officer (FIO) at the 60th Precinct. § 87(2)(b) resided in a building which Sgt. McDonald frequently patrolled as an FIO. Out of curiosity, Sgt. McDonald asked § 87(2)(b) about a murder that had occurred in her building. Over the years, Sgt. McDonald had lost touch with the officers from the 60th Precinct, as they had all gone their separate ways. Sgt. McDonald asked about § 87(2)(b) knowledge of this occurrence because he was curious as to whether she knew if the NYPD solved that case. Sgt. McDonald’s questions were not intended to be accusatory in any way.

§ 87(2)(b) alleged that PO Peterson asked § 87(2)(b) accusatory questions with regard to his socks being dirty, and that Sgt. McDonald asked her accusatory questions with regard to her siblings. BWC videos clarify that this did not occur. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (G) Abuse of Authority: Sergeant Christopher McDonald failed to provide § 87(2)(b) with a business card.

Allegation (H) Abuse of Authority: Police Officer Isaac Quarshie failed to provide § 87(2)(b) with a business card.

Allegation (I) Abuse of Authority: Police Officer Demitrious Peterson failed to provide § 87(2)(b) with a business card.

Allegation (J) Abuse of Authority: Police Officer Jose Jimenez failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) stated (Board Review 03) that after Sgt. McDonald asked her about her brothers, the officers departed without issuing her or any of her passengers a summons. No officer on scene provided or offered to provide § 87(2)(b) or any of her passengers with a business card.

Sgt. McDonald’s (Board Review 05), PO Quarshie’s (Board Review 14), PO Peterson’s (Board Review 12), and PO Jimenez’s (Board Review 06) BWC videos show that no officer provided a business card to any civilian in § 87(2)(b) vehicle despite each requesting identifying information from these civilians.

Sgt. McDonald (Board Review 04) and PO Quarshie (Board Review 13) both testified that they did not provide a business card to § 87(2)(b) because they were not required to do so based on the level of the stop (level four). It was their understanding that business cards were to be provided during level two or level three stops. PO Peterson (Board Review 09) also testified that he did not provide § 87(2)(b) with a business card because he was not required to do so based on the level of the stop (level four). PO Jimenez (Board Review 10) testified that he did not provide § 87(2)(b) with a business card because he was not required to do so. It is PO Jimenez's understanding that he is required to provide a business card during level two or level three stops, interrogations, warrant investigations, or when requested by a civilian. They each testified that they ultimately used their discretion, and no one was issued a summons.

Per NYPD Administrative Guide Procedure 304-11 (Board Review 15), members of service are required to offer business cards upon the conclusion of law enforcement activities, including stops, except in cases when a summons is issued, or an arrest is made.

It is undisputed that no officer provided a business card to any stopped civilian in § 87(2)(b) vehicle. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (K) Abuse of Authority: Police Officer Demitrious Peterson improperly used his body-worn camera.

Although not alleged by § 87(2)(b) BWC videos show that PO Peterson improperly used his BWC.

PO Peterson's BWC video (Board Review 12) begins at 19:15:13 as he stands at the rear passenger-side window of § 87(2)(b) vehicle. He holds his department cell phone and runs § 87(2)(b) information. PO Peterson does not activate his BWC until the one-minute mark, at 19:16:14.

PO Quarshie's BWC video (Board Review 14) shows at 1 minute 9 seconds (19:12:26) PO Peterson (a Black male in uniform) approaching the rear passenger-side window and requesting § 87(2)(b) identification. This is several minutes before PO Peterson activated his own BWC.

Sgt. McDonald's BWC video (Board Review 05) shows a different perspective of this request at 1 minute 23 seconds.

PO Peterson testified (Board Review 09) that he was not certain if his BWC was activated when he requested § 87(2)(b) identification. It is PO Peterson's understanding that he is required to activate his BWC upon exiting from his vehicle. PO Peterson did not activate upon exiting his vehicle because his BWC was powered off. PO Peterson had used the bathroom prior to this incident and did not want the camera to record him in the bathroom because BWCs are always recording. However, PO Peterson also testified that newly recorded video is constantly overriding older video and that video is not saved until the camera is activated. When PO Peterson exited his vehicle, he had to power the BWC on to activate it, which can take between one and five minutes.

There was no other reason why PO Peterson did not activate his BWC immediately upon exiting his vehicle.

Per Patrol Guide Procedure 212-123 (Board Review 16), officers are required to activate their BWCs prior to arriving at an incident location or prior to engaging in any self-initiated police action.

The NYPD's Body-Worn Camera Impact and Use Policy (April 11, 2021) (Board Review 17) explains that for Axon cameras such as those in use here, once powered on, BWCs continuously record video, re-writing over captured video in 60 second intervals. When an officer activates the record switch, the preceding 60 seconds of video recording is automatically saved. That 60 seconds of recorded video will not contain audio. Once the record switch is activated, the BWC records all audio and video until the record-switch is deactivated.

BWC videos show that PO Peterson was already taking police action by running § 87(2)(b) information prior to activating his BWC. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- § 87(2)(b)
- Sgt. McDonald has been a member of service for 12 years and has been a subject in six additional CCRB complaints and 14 additional allegations, none of which were substantiated. § 87(2)(g)
- PO Jimenez has been a member-of-service for five years and this is the first CCRB complaint to which he has been a subject.
- PO Quarshie has been a member of service for four years and has been a subject in five additional CCRB complaints and 13 additional allegations, none of which were substantiated. § 87(2)(g)
- PO Peterson has been a member of service for three years and has been a subject in three additional CCRB complaints and six additional allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of January 9, 2024, the New York City Office of the Comptroller had no record of a Notice of Claim being filed in regard to this incident (Board Review 19).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 12

Investigator:	<u>Annette Castillo</u>	<u>Inv. Annette Castillo</u>	<u>05/07/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Samuel Ross</u>	<u>IM Samuel Ross</u>	<u>05/07/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date